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HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 69

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO READING COMPETENCY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 158, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 158. Reading ~~screening~~ [~~Effective Nov. 6, 2024~~], screening.

(a) As used in this section:

(1) "Literacy intervention approaches" means evidence-based, specialized reading, writing, and spelling instruction that is systematic and explicit and intensified based on the needs of the student. Dyslexia-specific intervention approaches may require greater intensity, such as smaller groups, increased frequency of instruction, and individualized progression through steps, than typical evidence-based reading instruction.

(2) "Universal reading screener" means a tool used as part of a multi-tiered system of support to determine if a student is at risk for developing reading difficulties and the need for intervention and to evaluate the effectiveness of core curriculum as an outcome measure. A universal reading screener must do all of the following:

a. Measure, at a minimum, phonemic awareness, phonological awareness, symbol recognition, alphabet knowledge, decoding and encoding skills, fluency, and comprehension.

b. Identify students who have a potential reading deficiency, including identifying students with characteristics of dyslexia.

(b) (1) Beginning July 1, 2023, a district or charter school shall screen each student enrolled in kindergarten through third grade 3 times a year for reading competency using a universal reading screener chosen from the list of aligned universal reading screeners maintained by the Department of Education (Department). The results of the screening and any intervention approaches being implemented shall be communicated in writing to each student's parent or guardian, either through inclusion in existing periodic progress reports or report cards, or otherwise. A district or charter school shall provide educators time during the contractual day to complete data entry and compilation associated with the screener, to communicate with families, and any other responsibility as outlined in this section. A district or charter school shall provide coverage for instruction or student support when the educator is meeting the responsibilities outlined in this section.

(2) Beginning July 1, 2024, districts and charter schools shall provide 1 or more literacy interventions from the list of aligned literacy intervention approaches maintained by the Department for each student or group of students identified with a potential reading deficiency.

(c) (1) The Department, in consultation with curriculum and special education supervisors from local education agencies, elementary school teachers, and elementary special education teachers, shall develop, maintain, and publish a list of universal reading screeners and a list of literacy intervention approaches that are aligned with the essential components of evidence-based reading instruction listed under § 1280(c)(3) of this title. Initial publication of the lists must occur by December 1, 2022. Beginning December 1, 2026, the Department, in consultation with those listed in this paragraph, must review and update the lists at least every 3 years.

~~(4) (2) In determining which universal reading screeners to include on the list, the Department~~ Department, in consultation with curriculum and special education supervisors from local education agencies, elementary school teachers, and elementary special education teachers, shall also consider the following factors:

a. The time required to conduct the screening, with the intention of minimizing impact on instructional time.

b. The timeliness in reporting screening results to teachers, administrators, and parents.

c. The integration of assessment and instruction the screener provides, including the ability to provide progress-monitoring capabilities and a diagnostic tool to support teachers or a progress-monitoring team with targeted instruction based on student needs.

d. Screening, diagnostic assessment, and progress-monitoring processes shall be aligned with multi-tiered system of support procedures and tools should be norm-referenced, criterion-referenced, or curriculum-based as appropriate.

(3) Literacy intervention approaches approved by the Department, in consultation with curriculum and special education supervisors from local education agencies, elementary school teachers, and elementary special education teachers, must do the following:

a. Incorporate explicit, systematic, and sequential approaches to teaching phonemic awareness, phonics, vocabulary, fluency, and text comprehension.

b. Incorporate decodable or phonetic text instructional strategies.

c. Include individual instruction, multisensory approaches, tutoring, mentoring, and the use of technology as needed.

d. Incorporate strategies and materials that connect student access to Tier 1 instruction, including knowledge building texts and vocabulary building.

(2) (4) The Department shall include with its list of aligned universal reading screeners and literacy intervention approaches, an explanation of how these screeners and interventions were selected, including consultation with national expert organizations and the evidence base as demonstrated by the National Center on Intensive Intervention or similar validated research.

(5) The Department shall issue specific guidelines that articulate how each approved intervention approach will align with the Department's multi-tiered system of support. The guidelines must provide recommendations for interventions to be used according to the early literacy foundational skill gaps determined through screening and diagnostics.

(3) (6) The Department shall provide professional learning on reading screening and literacy intervention approaches at no cost which shall be provided during the contractual day.

(7) The Department shall provide a process through which school districts and charter schools can apply for Department approval of an alternative reading screener that meets the requirements of this section. Any reading screener approved under this paragraph must be added to the list of approved universal reading screeners maintained by the Department. Applications under this paragraph must be submitted to the Department by March 15 preceding the school year the alternative reading screener is to be used.

(d) Beginning in 2023, each school district and charter school shall report annually to the Department, on or before October 31, the number and percentage of students, disaggregated by grade and by individual school, identified with a potential reading deficiency, including characteristics of dyslexia, pursuant to the screening mandated in subsection (b) of this section, and the literacy intervention approaches being provided.

(e) Beginning in 2023, on or before December 31, the Department shall annually compile the information received from districts and charters under subsection (d) of this section and deliver a comprehensive report to the State Board of Education, the Governor, the Chairs of the Education Committees of the Senate and House of Representatives, the Director and the Librarian of the Division of Legislative Services, and the Delaware Public Archives. The report must also be available to the public on the Department's website.

(f) (1) Beginning February 28, 2026, the Department shall annually identify schools with a significant level of students below proficient on the State's third grade reading assessment for 2 consecutive years.

(2) The Department shall provide supports to schools identified under paragraph (f)(1) of this section, which may include coaching, professional development, support to implement school improvement plans, and collaborative

83 development of literacy improvement plans. The Department shall establish procedures to monitor implementation of
84 literacy supports, which may include calls, meetings, site visits, and document review.

SYNOPSIS

This Act updates the DOE's standards for selecting and implementing statewide reading screeners and literacy intervention approaches. In summary, this Act does the following:

1. Clarifies factors that the Department must consider when selecting literacy intervention approaches that may be used by schools.
2. Authorizes school districts and charter schools to submit an alternative reading screener to the Department for approval.
3. Requires the Department to annually identify schools with a significant level of students below proficient on the State's third grade reading assessment for 2 consecutive years.
4. Requires the Department to provide additional supports to schools identified as below proficient.